

Calendar Line 1

Case Name: Hai Huynh v. Bien Doan

Case No.: 25CV458112

This is a defamation action brought by plaintiff Hai Huynh (Huynh) against defendant Dien Doan (Doan) based on Doan telling a third-party, Betty Duong (Duong), that Huynh was a “convicted felon.” Huynh’s original complaint, alleging a single cause of action for defamation per se, was filed in February 2025. Attached to the complaint as exhibit A was part of a transcript of a hearing in a prior civil harassment case, *City of San Jose v. Huynh*, case No. 24CH012393.

Doan previously filed both a special motion to strike the complaint (Code Civ. Proc., § 425.16) and a demurrer to the complaint. Both were heard by the court (Judge Chung) in September 2025. The court denied the anti-SLAPP motion. The court found that the complaint arose from protected activity under Code of Civil Procedure section 425.16, subdivision (e)(4). On the second prong of the analysis, the court rejected Doan’s arguments that the alleged statements were not sufficiently described and that the alleged statements would have been privileged under Civil Code section 47, subdivision (a). (See Sept. 19, 2025 order at pp. 9:11-10:18.) The court also found that “Huynh has submitted evidence in the form of declarations and testimony from the prior civil harassment proceeding that is sufficient to make a ‘prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ This includes the sworn testimony of Duong that at a funeral service in either February 2024 or ‘towards the end of 2023 or the fall season’ Doan ‘had told me that Hai Huynh was a bad guy and that he was a convicted felon and that I should be careful.’ (Complaint, Exhibit A, p. 129:10-15; see also Declaration of Betty Duong, ¶¶ 9-12.)” (*Id.* at pp. 8:24-9:5, internal citation omitted.)

The court expressly found that Huynh had shown sufficient prima facie evidence of malice: “Huynh has submitted evidence that even prior to making the allegedly defamatory statement to Duong, Doan had told others that Huynh was a ‘convicted felon,’ Doan had been told this was not true, he had been asked to stop making this statement, but he nevertheless insisted on repeating it to Duong. (Declaration of Thi Mong Hoang, ¶¶ 5-8; Declaration of Ha Phong Duong, ¶ 7; Declaration of Hai Huynh, ¶¶ 11-12, 16-18.) In addition, Huynh points to evidence in the public record that would have made clear—upon even a cursory examination—that Huynh was never convicted of a felony. (Huynh Declaration, ¶¶ 25-26.) This is sufficient to make a prima facie showing of malice.” (Sept. 19, 2025 order at pp. 10:20-11:6.)

The court sustained Doan’s demurrer to the defamation cause of action with leave to amend because “Huynh has pointed to sufficient evidence to make a prima facie showing of malice in response to the anti-SLAPP motion. But none of this evidence is in the pleading itself.” (*Id.* at p. 15:14-16.) The court granted leave to amend based on the decision in “*Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858 (*Nguyen-Lam*), which similarly involved a situation in which a plaintiff failed to plead malice adequately in her complaint but had sufficient evidence to prevail on the second prong of the anti-SLAPP analysis. In that case, the trial court granted leave to amend, and the Court of Appeal found no error in that ruling. Those are essentially the facts of the present case.” (*Id.* at p. 16:19-23.) The court takes judicial notice of Judge Chung’s order on its own motion. (Evid. Code, § 452, subd. (d).)

Doan did not file a motion for reconsideration of the September 2025 order; nor did he appeal from that order. The court's finding that Hyunh has sufficiently shown a probability of prevailing on his defamation claim remains in effect and the September 2025 order is presumed correct. The decision to grant Huynh leave to amend the allegations in the complaint and file a FAC has no bearing on that finding.

The operative first amended complaint was filed in October 2025. The FAC alleges a single cause of action for defamation per se. The FAC, at paragraphs 50 through 62, adequately alleges malice by Doan by alleging the facts that were previously stated only in the declarations submitted in opposition to the anti-SLAPP motion. A copy of the transcript from the prior civil harassment case, case No. 24CH012393, is once again attached as exhibit A. Attached as exhibit B are copies of a text message exchange between Huynh and Doan.

Now before the court is a renewed anti-SLAPP motion by Doan, which Hyunh opposes.

DISCUSSION

As an initial matter, there is no authority permitting a moving party to incorporate by reference arguments made in previously filed motions. The court has not considered any such incorporated documents or arguments in deciding Doan's motion. (See Doan memorandum at p. 2, fn. 1, and p. 5, fn. 2.)

Request for Judicial Notice

Hyunh filed a request for judicial notice with his opposition. "Judicial notice may not be taken of any matter unless authorized or required by law." (Evidence Code §450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the Court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Hyunh's request for judicial notice of "[a]ll pleadings and documents filed in this case," and of a February 2026 court order in a different lawsuit involving Doan is denied as irrelevant to the material issue before the court on this motion. To the extent the requests for judicial notice made in the body of Huynh's opposition brief could be considered separate requests, they are also denied. (Cal. Rules of Court, rule 3.1113(l).)

The Renewed Anti-SLAPP Motion Must Be Denied

Section 1008 of the Code of Civil Procedure is the exclusive means for a party to call upon a court to revisit interim rulings. (Code Civ. Proc., § 1008, subd. (e) (unspecified statutory references are to this Code); *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 885.) Section 1008 describes two types of motion: (1) a motion for reconsideration, and (2) a motion for renewal.

Motions for reconsideration are governed by section 1008, subdivision (a), which requires that any such motion be (1) filed "within 10 days after service upon the party of written notice of entry of the order" of which reconsideration is sought, (2) supported by new or different facts, circumstances or law, and (3) accompanied by an affidavit detailing the circumstances of the first motion and the respects in which the new motion differs from the first. (§ 1008, subd. (a).)